

This Case Management Conference (“CMC”) trails the hearing for Line No. 12. Counsel are ordered to appear via Zoom or in person for the CMC at 9:00 a.m.

Law & Motion

3. 9:00 AM CASE NUMBER: C23-01583
CASE NAME: S A VS. EARTH SEEDS LLC
HEARING ON DEMURRER TO: TO: 1ST AMENDED COMPLAINT
FILED BY: WONDERSCHOOL, INC.

TENTATIVE RULING:

Off calendar. These parties were ordered to proceed with arbitration, see Order filed on 12/31/2025.

4. 9:00 AM CASE NUMBER: C23-01583
CASE NAME: S A VS. EARTH SEEDS LLC
***HEARING ON MOTION IN RE: TO STRIKE RE: FIRST AMENDED COMPLAINT**
FILED BY: WONDERSCHOOL, INC.

TENTATIVE RULING:

Off calendar. These parties were ordered to proceed with arbitration, see Order filed on 12/31/2025.

5. 9:00 AM CASE NUMBER: C23-02445
CASE NAME: DARSHAN SINGH VS. RUDOLPH SANDOVAL
***HEARING ON MOTION IN RE: SANCTIONS FOR DEFENDANTS' REFUSAL TO COMPLY WITH COURT ORDERS**
FILED BY: SINGH, DARSHAN

TENTATIVE RULING:

Summary

Plaintiff Darshan Singh’s Motion for Terminating Sanctions and Monetary Sanctions against Defendants Rudolph Sandoval and Anthony Roston is **granted** as set forth herein. Sanctions are **granted**.

Background

In this breach of construction contract case, Plaintiff Darshan Singh (“Plaintiff” or “Singh”) retained Defendants Rudolph Sandoval (“Sandoval”) and Anthony Roston (“Roston”), to construct a pool house and deck at his home in Danville, California. Plaintiff claims that Defendants worked together in violation of the law to allow Roston, whose contractor’s license was administratively revoked by the California Contractors State License Board (“CSLB”), to work under Sandoval’s contractor’s license. There is a dispute about whether the work was completed and Plaintiff brings this suit for cost of completion and other damages against Defendants. A default was entered against Roston on December 4, 2024.

On September 5, 2025, Plaintiff filed this Motion for Terminating Sanctions and Monetary Sanctions in the amount of \$7,200 against Defendants and their attorney, Andrew Shalaby, Esq. The Motion was

supported by a Notice, Memorandum of Points and Authorities, Request for Judicial Notice, and Declaration of Counsel Kerri M. Melucci.

Plaintiff argues that Defendants have not complied with the Court's prior orders to produce discovery and has filed objections that are not only inapplicable, but also violate this Court's orders. Specifically, the Court ordered Defendants to prepare answers to discovery on March 7, 2025 without further objections. After the deadline to respond, Defendants served a written objection "to all discovery," despite the Court's clear orders to the contrary and brought a motion to set aside the March 7, 2025 Court Order. The Court denied Defendants' motion, and again ordered Defendants to respond to discovery, without objections, no later than July 31, 2025. Defendants now violate that Court Order. Defendants now serve *another* objection to discovery based upon the Fifth Amendment privilege against self-incrimination, which does not apply to civil cases.

Defendants filed an opposition on December 8, 2025 asserting that "have not refused to comply" with the Court's orders and further seek a Motion for Protective Order to prevent disclosure of any information related to the Contractor's State License Board investigation related to case number NA 2022-15282, which Defendants claim Plaintiff had initiated against them. Defendants assert that objections were necessitated to preserve their 5th Amendment Right against self-incrimination. Defendant also assert that Plaintiff violated his duty of candor to the Court by failing to disclose this "criminal complaint" that Plaintiff initiated against Defendants. Nowhere in Defendants' opposition do they state that they have attempted to timely complied with this Court's discovery orders. Plaintiff filed a reply brief contesting the opposition arguments on December 29, 2025, which the Court has considered. The Court has also reviewed the additional declaration filed by Counsel Melucci to the extent that they are relevant to these proceedings.

Analyses

Request for Judicial Notice

Plaintiff's Request for Judicial Notice pursuant to Evid. Code §452(d) of the Court's records, marked as Exhibits H, I and J are granted, without opposition.

Violation of Discovery Orders

If a party fails to obey an order compelling answers to interrogatories or requests for production, the Court may make orders that are just, including the imposition of an issue, evidence, or terminating sanctions under the Civil Discovery Act. (Code Civ. Proc. ("CCP") §§ 2030.290, subd. (c) and 2031.300, subd. (c).) Pursuant to CCP § 2023.030 the court "may impose terminating sanctions by one of the following orders: (1) [a]n order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process; (2) [a]n order staying further proceedings by that party until an order for discovery is obeyed; (3) [a]n order dismissing the action, or any part of the action, of that party; or (4) [a]n order rendering a judgment by default against that party." (Code Civ. Proc., § 2030.030, subd. (d)(1)-(4).)

The Court applies discovery sanctions to correct prejudice, not to punish misbehavior. (See *McGinty v. Superior Court* (1994) 26 Cal.App.4th 204, 210.) "Discovery sanctions serve to remedy the harm caused to the party suffering the discovery misconduct. [Citation.] Because discovery sanctions are

not designed to punish, "sanctions should be tailored to serve that remedial purpose, should not put the moving party in a better position than he would otherwise have been had he obtained the requested discovery, and should be proportionate to the offending party's misconduct." [Citation.]" (*Kwan Software Engineering, Inc. v. Hennings* (2020) 58 Cal.App.5th 57, 74.) For this reason, "sanctions are generally imposed in an incremental approach[.]" (*Department of Forestry & Fire Protection v. Howell* (2017) 18 Cal.App.5th 154, 191-192 (Department of Forestry), disapproved of on other grounds in *Presbyterian Camp & Conference Centers, Inc. v. Superior Court* (2021) 12 Cal.5th 493, 516, fn. 17.)

However, even under the Civil Discovery Act's incremental approach, the trial court may impose terminating sanctions as a first measure in extreme cases, or where the record shows lesser sanctions would be ineffective." (*Department of Forestry, supra*, 18 Cal.App.5th at p. 191-192.) "If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse . . . "[W]here a violation is willful, preceded by a history of abuse, and ... less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction." (Atlas v. Davidyan (2025) 113 Cal.App.5th 1086, 1095 quoting *Creed-21 v. City of Wildomar* (2017) 18 Cal.App.5th 690, 701.)

Applied here, the Court finds that Defendants have not complied with the Court's clear orders to produce discovery responses without further objections, which were ordered on March 7, 2025 and June 16, 2025. Plaintiff propounded discovery requests that necessitated these on March 22, 2024-over seventeen (17) months prior to bringing this motion. Defendants have not provided responses, without objections, as ordered by the Court. Plaintiffs are without basic discovery that permits them to pursue litigation against the Defendants in this breach of contract case. The Court finds merit to Plaintiff's argument that Defense counsel continues to engage in a pattern of delay and unfounded objections.

The Court also finds that Defendant's Fifth Amendment objections are without merit. Defendants cannot properly employ the 5th Amendment privilege in a State administrative matter involving the CSLB. Indeed, the Court of Appeal in *West Coast Home Imp. Co. v. Contractors' State License Bd. of Dept. of Professional and Vocational Standards* (1945) 72 Cal.App.2d 287 held a contractor could not refuse to testify on Fifth Amendment grounds in a CSLB investigation when "a veritable forest of cases have rejected the contention that such administrative proceedings 'are to be governed by criminal law theories on matters of evidence.'" (Id., p. 301, citing to *Webster v. Board of Dental Examiners* (1941) 17 Cal.2d 534, 53 7.) The "purpose of a disciplinary proceeding" before the CSLB "is to determine the fitness of a licensed contractor to continue in that capacity. It is not intended for the punishment of the individual contractor, but for the protection of the contracting business as well as the public ... " (Id., p. 301.) A proceeding before the CSLB "is a special proceeding of a civil nature, and the rules applicable to criminal cases do not apply." (Id., p.302.) The Court finds that Defendant's late objection to discovery on 5th Amendment grounds is without substantial justification and subject to sanctions.

Sanctions

Under Cal. Code of Civ. Proc. § 2023.010(e),(f),(h), (i) it is a misuse of discovery to make, "without substantial justification, an unmeritorious objection to discovery, " to make "an evasive response to

discovery” and to make or oppose “unsuccessfully without substantial justification a motion to compel or to limit discovery,” or to fail to meet and confer to resolve discovery disputes informally. Cal. Code of Civ. Proc. § 2023.020 states that the Court “**shall** impose a monetary sanction ordering that any party or attorney who fails to confer as required pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.”

One of the basic purposes for imposing sanctions is to compel disclosure of discoverable information. See, e.g., *Marriage of Economou* (1990) 224 Cal.App.3d 1466, 1475 (court’s discretion to impose sanctions “must be exercised in a manner consistent with the basic purposes of such sanctions: to compel disclosure of discoverable information”); *Kaplan v Eldorado Ins. Co.* (1976) 55 Cal.App. 3d 587, 591 (discovery sanctions enable party “to obtain evidence in the control of his adversary in order to further the efficient, economical disposition of cases according to right and justice on the merits”).

In keeping with this purpose, the proposed sanction should be “suitable and necessary” to enable the requesting party to obtain the object of its discovery. *Caryl Richards, Inc. v Superior Court* (1961) 188 Cal.App.2d 300, 304. See *Juarez v Boy Scouts of Am., Inc.* (2000) 81 Cal.App.4th 377, 388. Whatever penalty is imposed should be “appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.” *Deyo v Kilbourne* (1978) 84 Cal.App.3d 771, 793. Sanctions are awardable to parties, not their attorneys. *Poe v Diamond* (1987) 191 Cal.App.3d 1394, 1399. The trial court may impose sanctions for a pattern of discovery abuse. It is not limited to imposing sanctions for each violation of the rules governing depositions or other discovery methods.

Another basic purpose of sanctions is to curb misuse of the discovery process, which can cause unnecessary delay and add greatly to the financial and human costs of litigation. See CCP §2023.010. The purpose of any discovery sanction is to force a recalcitrant party to comply with discovery orders and to mitigate the prejudice suffered by the propounding party when such orders are disregarded. *Flood v Simpson* (1975) 45 Cal.App.3d 644, 651; *Pacers, Inc. v Superior Court* (1984) 162 Cal.App.3d 686.

In cases decided before and after the enactment of the Civil Discovery Act of 1986, courts have repeatedly stated that the purpose of sanctions is not “to provide a weapon for punishment, forfeiture and the avoidance of a trial on the merits.” *Crummer v Beeler* (1960) 185 CA2d 851, 858; see *City of Los Angeles v PricewaterhouseCoopers, LLP, supra*, 17 Cal.5th 46, 63 (quoting *Crummer*). See also *Marriage of Economou, supra*, 224 Cal.App. 3d 1466, 1475 (“Discovery sanctions cannot be imposed to punish the offending party or to bestow an unwarranted ‘windfall’ on the adversary”).

In addition, “[a] discovery sanction may not place the party seeking discovery in a better position than it would have been in if the desired discovery had been provided and had been favorable.” *Marriage of Chakko* (2004) 115 CA4th 104, 109; *Miranda v 21st Century Ins. Co.* (2004) 117 Cal.App.4th 913 (dismissal of uninsured motorist arbitration upheld; trial court not required to impose “lesser sanction” of staying arbitration until discovery answered).

Applied here, the Court finds that Defendants have made groundless objections and have demonstrated a pattern of purposeful and unjustified tactics designed to delay these proceedings. Such actions are without substantial justification and are not made in a good faith effort. Accordingly,

the actions of Defendants and Defense Counsel Shalaby amounts to sanctionable conduct.

After careful review of the papers submitted by Counsel, and after applying the foregoing statutory and decisional authority, the Court finds good cause to make the following ruling and orders.

Ruling

1. Plaintiff Darshan Singh's Motion for Terminating Sanctions and Monetary Sanctions against Defendants Rudolph Sandoval and Anthony Roston are **granted**.
2. Defendants are ordered to serve code-compliant and verified responses to all outstanding discovery no later than five (5) days after the date of service of this order without further objections. All responsive documents must also be produced no later than five (5) days after date of service of this order.
3. Plaintiff's request for sanctions is granted against both Defendants and Counsel Andrew Shalaby, jointly and severally, in the amount of \$7,200 pursuant to Cal. Code of Civ. Proc § 2023.030(a). Sanctions are to be paid within ten (10) days of service of this order.
4. The Court provides notice that Defendants' failure to provide code-compliant verified responses to all outstanding discovery as set forth in this order will result in the Court issuing terminating sanctions pursuant to Cal. Code of Civ. Proc § 2023.030(d)(4), in which the Court will enter an order rendering a judgment by default against both Defendants.
5. Pursuant to Cal. Code of Civ. Proc § 2023.030(d)(2), the Court stays Defendants' Motions for Protective Order, currently on calendar for March 11 and March 18, 2026 until this order for discovery is obeyed. Both Motions are off calendar.
6. Defendants are ordered to prepare and e-file a proposed order that conforms to this ruling no later than five (5) days after the hearing, attaching a copy of this ruling.

6. 9:00 AM CASE NUMBER: C23-03283
CASE NAME: CANDELARIO BARRAGAN VS. SPECIALIZED LOAN SERVICING, LLC
***HEARING ON MOTION IN RE: RECONSIDERATION**
FILED BY: BARRAGAN, CANDELARIO
TENTATIVE RULING:

Summary

Plaintiff Candelario Barragan's Motion for Reconsideration is **denied** as set forth herein.

Background

This case involves a dispute between Plaintiff and Defendants relating to the mortgage and Home Equity Line of Credit pertaining to real property located at 3239 Doyle Lane, Oakley, CA, which is owned by Plaintiff.

On April 11, 2025, Plaintiff Candelario Barragan ("Plaintiff") filed a First Amended Complaint alleging Nine Causes of Action: (1) Declaratory Relief, (2) Quiet Title, (3) Violation of Cal. Bus. And Professions Code § 17200, (4) Violation of the Rosenthal Fair Debt Collection Practices Act, (5) Negligence, (6) Wrongful Foreclosure, (7) Unfair Competition, (8) Breach of Contract, and (9) Set Aside Trustee's Sale.

On April 30, 2025, Defendants Specialized Loan Servicing, LLC, Shellpoint Property Management, LLC, First Key Master Funding and Mason Yanowitz (collectively, "Defendants") filed a Demurrer to Plaintiff